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PLAINTIFF TALMADGE BOATRIGHT'S MOTION FOR LEAVE TO FILE
FIRST AMENDED COMPLAINT

Motion filed on April 8, 2026.

MOVING PARTY: Plaintiff Talmadge Boatright

RESPONDING PARTY: Defendants Castleworks Home Services
Company and Fred Freund

NOTICE: OK.

RELIEF REQUESTED: Plaintiff moves for leave to file a First
Amended Complaint adding factual allegations, administrative prerequisite
allegations, a seventh cause of action for wrongful termination in violation of
public policy, and an eighth cause of action for discrimination in violation of
Government Code section 12940.

RULING: Granted.

BACKGROUND

On May 27, 2025, Talmadge Boatright (Plaintiff) filed this action against Castleworks Home Services Company and Fred Freund (Defendants), asserting causes of action for (1) failure to pay overtime wages, (2) failure to provide required meal periods, (3) failure to provide required rest periods, (4) failure to pay earned wages upon discharge, (5) failure to furnish accurate itemized wage statements, and (6) violation of the Unfair Competition Law.

Plaintiff filed this Motion for Leave to Amend on April 8, 2026. Defendants opposed on June 12, 2026. Plaintiff replied on June 18, 2026.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).) "This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.)

Under Rule 3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under Rule 3.1324, subdivision (b) of the California Rules of Court, a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4)

the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

DISCUSSION

California Rule of Court 3.1324

Plaintiff satisfies Rule 3.1324(a). Plaintiff attaches a serially numbered proposed FAC as Exhibit A to the Song Declaration. Plaintiff attaches a redline as Exhibit B. Plaintiff identifies the proposed additions and deletions by page and line number in Exhibit 1 to the Motion. (Song Decl., ¶¶ 3-5, Exs. A-B. Motion, Ex. 1.)

Plaintiff also satisfies Rule 3.1324(b). The proposed FAC adds facts and two new causes of action for wrongful termination in violation of public policy and discrimination in violation of Government Code section 12940. (Song Decl., ¶ 3.) The amendment is necessary and proper because the new allegations arose from counsel's investigation into termination-related issues that Defendants resisted through discovery objections. (Id. at ¶¶ 3, 6-8.) Counsel discovered the facts in March 2026. (Id. at ¶ 3.) And Plaintiff did not seek the amendment sooner because Plaintiff was awaiting Defendants' discovery responses and Defendants refused to stipulate. (Id. at ¶¶ 9-11.)

Meet and Confer

Defendants contend Plaintiff failed to meet and confer because the proposed eighth cause of action for discrimination was never discussed before Plaintiff filed the Motion. (Opp. at pp. 4-5.) Section 473, subdivision (a)(1) and rule 3.1324 govern a motion for leave to amend, and neither requires the moving party to meet and confer before filing. The scope of any pre-filing discussion supplies no ground to deny leave.

Sham Pleading, Uncertainty, and Statute of Limitations

A court may deny leave to amend where the proposed amendment omits or contradicts harmful facts pleaded in the original pleading, absent a showing of mistake or other sufficient excuse for changing the facts, and without such a showing the amended pleading may be treated as a sham. (Vallejo Develop. Co. v. Beck Develop. Co. (1994) 24 Cal.App.4th 929, 946.) Proposed amendments contradicting "allegations in an earlier pleading will not be

allowed in the absence of very satisfactory evidence upon which it is clearly shown that the earlier pleading is the result of mistake or inadvertence.” (American Advertising & Sales Co. v. Mid-Western Transport (1984) 152 Cal.App.3d 875, 879.) The doctrine’s “purpose ... is to enable the courts to prevent an abuse of process.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 751.) It “is not intended to prevent honest complainants from correcting erroneous allegations or to prevent the correction of ambiguous facts.” (Ibid.)

Courts generally do not consider the validity of proposed amendments to a pleading. (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047; Atkinson v. Elk Corp. (2006) 109 Cal.App.4th 739, 760 [“the better course of action would have been to allow ... [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings.”].)

Here, Defendants argue the FAC is a sham because the original complaint pleaded only misclassification and the FAC now recharacterizes the action as one for discrimination and wrongful termination. (Opp. at pp. 4-5.) The doctrine does not reach that objection, which measures the new pleading against the character of the case as Defendants would describe it rather than against the former pleading. (Vallejo, supra, 24 Cal.App.4th at p. 946.) Defendants acknowledge the original complaint “did not contain any allegations that Plaintiff’s termination was wrongful or motivated by discrimination.” (Opp. at p. 4.) Because the original pleading made no allegation on the subject, the FAC contradicts and omits nothing, and Plaintiff has no earlier allegation to explain away as the product of mistake or inadvertence. Adding claims that rest on facts the original complaint did not address is the correction and expansion the liberal policy favoring amendment contemplates, not a sham.

Defendants separately contend the FAC is a sham because it is internally contradictory, alleging both that Plaintiff was terminated as a scapegoat to placate a complaining employee and that his termination was substantially motivated by his protected characteristics. (Opp. at p. 5. See Song Decl., Ex. A, ¶ 73.) The sham pleading doctrine measures a proposed pleading against a former one, and this objection compares allegations within the proposed pleading itself.

Defendants contend the FAC is uncertain because paragraphs 80 and 82 allege a homophobic slur and violations of Government Code section

12940, subdivisions (j) and (k) without tying them to a pleaded cause of action. Defendants further argue the discrimination claim may be time-barred because the referenced allegations lack dates. (Opp. at pp. 5-7. Song Decl., Ex. A, ¶¶ 80, 82.)

The Court finds Defendants have not shown an incurable defect that would justify denial at this stage. As to uncertainty Defendants ask, as a condition in the alternative, that Plaintiff replead the discrimination allegations with dates, treating the alleged uncertainty as potentially curable. (Opp. at pp. 10-11.) As to the statute of limitations, Defendants acknowledge the discrimination claim “appears, at first blush, to be timely” because Plaintiff alleges he was terminated on October 4, 2024 and filed his Civil Rights Department complaint on March 30, 2026. (Opp. at p. 6. Song Decl., Ex. A, ¶¶ 10-11, 61.) The absence of dates for earlier alleged conduct may support a later challenge to particular allegations, but it is not the incurable, facial limitations bar that would justify denying leave here. (California Cas., supra, 173 Cal.App.3d at p. 281.)

Defendants may raise these sham pleading, uncertainty, and statute of limitations arguments by demurrer, motion to strike, or other appropriate motion after the FAC is filed.

Prejudice, Delay, and Bad Faith

The liberal policy favoring amendment yields only on a showing of prejudice that conditions cannot cure. Absent some disadvantage flowing from it, such as faded memories or lost evidence, “delay causing the need to defend, in and of itself, is not a valid reason to deny amendment.” (Jo Redland Trust, U.A.D. 4-6-05 v. CIT Bank, N.A. (2023) 92 Cal.App.5th 142, 168.) Where delay has not misled or prejudiced the opposing side, denying leave is an abuse of discretion even when the amendment is sought as late as trial. (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564-565.)

Here, Defendants first contend the amendment would transform a wage-and-hour dispute into a complex discrimination matter requiring new categories of discovery, including depositions of human resources personnel, investigation into workplace culture, and expert testimony on damages, expanding the scope and cost of the litigation. (Opp. at p. 8.)

The cases Defendants cite each involve a trial date or

dispositive motion the proposed amendment would disrupt. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [leave properly denied where the trial date was set, the jury was about to be impaneled, and avoiding prejudice required continuing the trial for further discovery]; *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345 [leave properly denied where sought after the trial readiness conference and unexplained]; *Fisher v. Larsen* (1982) 138 Cal.App.3d 627, 649 [leave properly denied where plaintiff delayed five months after summary judgment motions were filed].)

This case stands in a different posture. As of the date of this hearing, no trial date is set, the parties have taken no depositions and will take the first in July 2026, the next Case Management Conference is set for January 20, 2027, and discovery remains open. Defendants identify no lost evidence and no continuance the amendment would force, and the added discovery they forecast is the ordinary consequence of amendment at this stage, not the trial-disrupting prejudice those cases found.

Defendants next contend the amendment would prejudice them by making the disputed termination discovery relevant, undercutting the relevance objections they have asserted within Plaintiff's eight pending motions to compel. (Opp. at pp. 8-9.) The Court finds this argument unpersuasive. (See *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490 [holding that evidence of an added theory of liability would become admissible against opposing parties, after leave to amend a complaint, does not constitute the kind of prejudice supporting denial].)

Defendants further argue Plaintiff knew the facts underlying the new claims when he filed suit in May 2025 and offers no adequate reason for Plaintiff's delay in seeking leave to amend. (Opp. at pp. 7-8.) Plaintiff's counsel declares the new claims emerged from further investigation in March 2026, and that Plaintiff did not seek relief sooner because he awaited Defendants' discovery responses and Defendants declined to stipulate. (Song Decl. ¶¶ 3, 6-11.) Plaintiff moved for leave on April 8, 2026. The Court finds Plaintiff did not fail to act diligently in seeking leave to amend.

Finally, Defendants characterize the amendment as a bad-faith tactic to bolster Plaintiff's pending discovery motions and salvage faltering claims. (Opp. at pp. 9-11.) The Court does not find bad faith on this record. *Green v. Rancho Santa Margarita Mortgage Co.* (1994) 28

Cal.App.4th 686, upon which Defendants rely, is distinguishable. Green involved a posttrial motion to amend an answer, where the moving party offered no adequate excuse for the delay and sought to assert a contradictory defense that required further discovery. (Id. at pp. 693-694.) As discussed, this case is at an early pretrial stage and Plaintiff's timing is explained.

On this record, the Court finds neither prejudice, delay, nor bad faith supports denial.

Conditions

An amendment allowed with permission of the court may be conditioned "upon any terms as may be just." (Code Civ. Proc., § 473, subd. (a)(1).) If it appears necessary, the court may grant a continuance to the adverse party and may order payment to the adverse party of "any costs as may be just." (Code Civ. Proc., § 473, subd. (a)(2).) These conditions are usually not imposed unless the amendment is substantial and belated and causes some inconvenience to the other party. (5 Witkin, Cal. Proc. 6th Plead § 1238 (2026).)

Defendants request three conditions if leave is granted. The Court finds none just on this record. First, Defendants ask that Plaintiff replead the discrimination allegations with dates. (Opp. at pp. 10-11.) That request addresses pleading sufficiency, not any inconvenience caused by belated amendment, and the Court declines to impose it. Second, Defendants ask the Court to vacate the pending motions to compel to the extent they seek termination-related discovery. (Opp. at p. 10.) The Court does not find vacating the separately calendared motions wholesale a just term of amendment. The parties may meet and confer about what effect, if any, the amendment has on the pending discovery disputes. Third, Defendants ask for the costs and expenses of expanded discovery. (Opp. at pp. 10-11.) Defendants submit no declaration identifying or quantifying those expenses. No trial continuance is at issue. The Court finds no "costs as may be just" on this record. (Code Civ. Proc., § 473, subd. (a)(2).)

CONCLUSION

The Court grants Plaintiff's motion for leave to file a First Amended Complaint. Plaintiff shall file and serve the First Amended Complaint, in the form attached as Exhibit A to the Song Declaration, within 10

days of this order. Defendants' time to respond runs from the date of service.
(Code Civ. Proc., § 471.5, subd. (a).) The Court denies Defendants' requests to
condition leave, to award fees and costs, and to vacate the pending motions to
compel. The motions to compel remain set for October 20, 2026.